

		Cross-Complainants did not oppose the motions and thus failed to meet their burden to establish there is a probability they will prevail on their claims. Thus, the motions are granted. <u>Attorney's Fees</u> With exceptions that do not appear to apply here, a prevailing moving party on an anti-SLAPP motion is entitled to recover attorney's fees and costs. (Civ. Pro. Code, § 425.16(c)(1).) Harry and Megan seek an award of attorney's fees and costs in the amount of \$11,560, which is composed of 14.6 hours at an hourly rate of \$500 for attorney Raquel Flyer Dachner, 6 hours at an hourly rate of \$700 for attorney David Flyer, and a \$60 filing fee. Cross-Complainants are ORDERED to pay attorney's fees and costs in the amount of \$9,560 to Harry and Megan. The amount requested by Harry and Megan was reduced for a variety of reasons, including that the motion was not opposed, and that the time spent was not entirely justified. The amount awarded consists of 12 hours at an hourly rate of \$500 and 5 hours at an hourly rate of \$700, plus the \$60 filing fee. Shawver seeks an award of attorney's fees and costs in the amount of \$3,680, which is composed of 7 hours at an hourly rate of \$455 (including two hours to reply and argue the motion), a \$60 filing fee, and a first appearance fee of \$435. The recommendation is to reduce the time spent from 7 to 6 hours because the motion is unopposed but otherwise grant this request. Thus, Cross-Complainants are ORDERED to pay attorney's fees and costs in the amount of \$3,225 to Shawver. Moving Parties shall each give notice of this ruling.
12	Cardona vs. Volkswagen Group of America, Inc.	TENTATIVE RULING: For the reasons set forth below, Defendant Volkswagen Group of America, Inc.'s ("Volkswagen") Motion for Summary Adjudication as to the first cause of action for Breach of Express Warranty – Pursuant to California Commercial Code is DENIED. Volkswagen's Motion for Summary Adjudication as to the Prayer for Relief "for Civil Penalties in the amount of \$246,054.06" is GRANTED.

Defendant Unstoppable Automotive Group, LLC dba Audi Mission Viejo's ("Audi Mission Viejo") Motion for Summary Adjudication as to the third cause of action for Violation of Song-Beverly Act – Breach of Implied Warranty, and the fourth cause of action for Negligent Repair, are DENIED.

Defendants' evidentiary objections to paragraphs 3 and 5-11, as well as Exhibits A, C, and D, to the Declaration of Michael William Oppenheim are OVERRULED.

Statement of Law

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc., § 437c, subd. (c); *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); *R.J. Land & Associates Construction Co. v. Kiewit-Shea* (1999) 69 Cal.App.4th 416, 424.)

"A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown

that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)

“First, and generally, from commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1213-1214.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

“Second, and generally, the party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; accord, *Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 876-877; accord, *Stokes v. Forty Niners Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214; Code Civ. Proc., § 437c, subd. (p)(1) [plaintiff meets its burden by proving each element of its cause of action].) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851.)

Breach of Express Warranty – Pursuant to California Commercial Code

Volkswagen contends the first cause of action – for Breach of Express Warranty Pursuant to California Commercial Code – fails because it requires privity between the buyer and the seller, yet Volkswagen did not sell Plaintiffs the subject vehicle, and it did not

extend any warranties to Plaintiffs in connection with the sale. (Lewis Declaration, ¶¶ 3-8; Exhibits A-B to Lewis Declaration; Kraft Declaration, ¶¶ 3-4; Exhibit A to Kraft Declaration; Espinosa Declaration, ¶ 2; Exhibit A to Espinosa Declaration.)

However, the Court of Appeal for the Fourth District, Division Two, remarked that, while the Song-Beverly Consumer Warranty Act may not apply to used vehicles that was only accompanied by a balance of the original warranty, “the beneficiary of a transferrable express warranty can sue a manufacturer for breach of an express warranty to repair defects under the California Uniform Commercial Code. [Citations.]” (*Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 225; accord, *Leon v. Volkswagen Group of America, Inc.* (C.D. Cal., June 27, 2025, No. 2:24-CV-03863-SPG-MAA) 2025 WL 1843211, at *2; see *Grismore v. Mercedes-Benz USA, LLC* (C.D. Cal. 2024) 710 F.Supp.3d 828, 837 [while a consumer who leased a used vehicle cannot recover against the manufacturer under the Song-Beverly Consumer Warranty Act, it can sue the manufacturer under the California Uniform Commercial Code].)

And here, Volkswagen admits that, when Plaintiffs acquired the subject vehicle, it retained the balance of the New Vehicle Limited Warranty. (Lewis Declaration, ¶¶ 4, 6.)

Since Volkswagen did not meet its initial burden, there remains a triable issue of material facts as to Defendants’ Material Fact nos. 1-5. Thus, the Court shall deny the Motion for Summary Adjudication as to the First Cause of Action.

Violation of Song-Beverly Act – Breach of Implied Warranty

Audi Mission Viejo seeks summary adjudication of the third cause of action, arguing that the breach of implied warranty claim fails because Plaintiffs cannot show the vehicle was unfit for ordinary use, and also because Plaintiffs did not present the subject vehicle for inspection or repair of said defects within the first three months of ownership. (Lewis Declaration, ¶¶ 3, 5, 9-10; Exhibits A, B, D to Lewis Declaration; Kraft Declaration, ¶¶ 3, 4, 7, 8; Exhibits A & B to Kraft Declaration; Espinosa Declaration, ¶ 2; Exhibits A-C to Espinosa Declaration.)

However, “[t]he Song–Beverly Act does not include its own statute of limitations. [Citation.] California courts have held that the statute of limitations for an action for breach of warranty under the Song–Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial